

Line 3

Case Name: *The Heights Residence, LLC v. Victoria Soboleva, et al.*

Case No.: 23CV417705

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff The Heights Residence, LLC (“Plaintiff” or “The Heights”) moves for Summary Adjudication under Code of Civil Procedure Section 437c(f) against Defendants Victoria Soboleva (“Soboleva”), Aureus Finance Group, LLC (“Aureus”), U.S. Bank Trust National Association (“U.S. Bank”) and FCI Lender Services, Inc. (“FCI”) (collectively, “Defendants”) of the following issues:

Issue No. 1: The Heights’s Third Cause of Action for Declaratory Relief should be summarily adjudicated in Height’s favor against Defendants because there is no triable issue of material fact and The Heights is entitled to Judgment as a matter of law.

Issue No. 2: The Heights’s Fourth Cause of Action for Quiet Title should be summarily adjudicated in The Heights’s favor against Defendants because there is no triable issue of material fact and The Heights is entitled to Judgment as a matter of law.

Notice of Motion (the “Motion”) at 2:4-14 (filed: Nov. 26, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On June 14, 2023, Plaintiff The Heights Residence, LLC (“The Heights”) filed this civil action against the following Defendants: Victoria Soboleva (“Soboleva”), Aureus Finance Group, LLC (“Aureus”), Fidelity National Title Insurance Company (“Fidelity”), California TD Specialists (“California TD”), U.S. Bank Trust National Association (“US Bank”), FCI Lender Services, Inc. (“FCI”), and Mark Spiller (“Spiller”) (collectively, “Defendants”).

According to the First Amended Complaint (“FAC”), The Heights is the owner of real property at 2051 Waverly St., Palo Alto, CA (“Subject Property”). (FAC, ¶¶ 1, 14, Exs. A, C.) Paul Roberts (“Roberts”) is the only manager or authorized agent of The Heights. (*Id.* at ¶ 13, Ex. B.) Spiller and Soboleva held themselves out to be the owner of the Subject Property, providing fraudulent proof of ownership, and made inquiries to Aureus about a Cash Out Refinance, despite them having no affiliation with The Heights. (*Id.* at ¶¶ 15, 17.)

In emails with Aureus, Spiller indicated that he and Soboleva were interested in a \$6.7 million cash-out refinance loan and that the Subject Property was an investment property. (*Id.* at ¶ 16.) Soboleva provided information showing accounts worth less than \$600,000 despite providing financial statements stating her assets totaled nearly \$24 million. (*Id.* at ¶ 17.) Despite the inconsistencies and the loan being rejected several times, Aureus employees pushed the loan through in early March 2022. (*Ibid.*) After the loan money was disbursed, Aureus was unable to contact Spiller and Soboleva and concluded that the transaction had been fraudulent and that the borrower was not real. (*Id.* at ¶ 18.)

Thereafter, Edward, a family friend of Soboleva, called Aureus to report the fraud and indicated Soboleva had fled to Russia. (FAC, ¶ 19.) In June 2022, FCI received a similar call from Edward, and Aureus was notified of this call. (*Id.* at ¶ 20.) Despite this information, Aureus and FCI proceeded with collection processes as usual. (*Ibid.*) On May 22, 2023, The Heights received a Notice of Default and Election to Sell Under Deed of Trust (“the Notice”) from TD Specialists, a debt collector retained by US Bank, regarding an alleged default by Plaintiff on a purported deed of trust (“Fraudulent DOT”) for the Subject Property. (FAC, ¶ 21.) The Fraudulent DOT secured a principal loan of \$5,250,000, reflecting The Heights as the borrower, Aureus as beneficiary-lender, and Fidelity as trustee. (*Id.* at ¶ 22.) The Fraudulent DOT was signed by Soboleva as managing member of The Heights. (*Id.* at ¶ 23.) The Heights believes Aureus sold the loan to US Bank who was then appointed as the new trustee of the Fraudulent DOT. (*Id.* at ¶ 24.) On May 24, 2023, Roberts filed a real estate fraud complaint form with the Santa Clara County District Attorney’s Office, Real Estate Fraud unit and sent the form to TD Specialists and FCI. (FAC, ¶ 26, Ex. D.)

On April 12, 2024, The Heights filed the operative FAC asserting claims for:

- 1) Slander of title [against Soboleva, Spiller, Aureus, and FCI];
- 2) Violation of Penal Code section 496 [against Soboleva and Spiller];
- 3) Declaratory relief [against Defendants]; and
- 4) Quiet title [against Soboleva, Aureus, Fidelity, TD Specialists, US Bank, and FCI].

On November 26, 2025, The Heights filed this Motion for Summary Adjudication of its Third Cause of Action for Declaratory Relief and Fourth Cause of Action for Quiet Title. US Bank opposes the Motion, and The Heights filed a Reply.

I. Legal Standard

A motion for summary adjudication on a cause of action is subject to the same rules and procedures as a summary judgment motion. (*Lunardi v. Great-West Life Assurance Co.* (1995) 37 Cal. App. 4th 807, 819.) So a motion for summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The “party moving for summary [adjudication] judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield*

Co. (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

II. Request for Judicial Notice

In connection with its Motion, The Heights seeks judicial notice of US Bank’s Cross-Complaint filed on July 23, 2025 (Ex. 17). While Exhibit 17 is not the operative pleading, The Heights refers to the Cross-Complaint in asserting that US Bank now seeks to contradict judicial admissions of fact. Under California law, the Court may take judicial notice of the existence of this pleading but not of the truth of its contents. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].) Accordingly, this request is **GRANTED** as to the pleading’s existence and filing date but not the truth of its contents or the contents of any attached exhibit.

In its Reply brief, The Heights requests judicial notice of US Bank’s Answer to the FAC. The request is **DENIED** because the Court finds that this Answer is not necessary, helpful, or relevant for the Court to decide this Motion. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [declining to take judicial notice of materials not “necessary, helpful, or relevant”].)

III. Objections

The Heights has filed objections to US Bank’s evidence. In the exercise of its broad discretion, the Court decides not to rule Objections 1, 3, and 4 now because these objections are not material to the Court deciding this Motion at this time. (See Code Civ. Proc., § 437c(q) [court need only rule on material objections to evidence and evidentiary objections not ruled on are preserved for appellate review].)

Regarding Objection 2, Objection 2 is **OVERRULED** on the merits.

IV. Analysis of the Motion on the Declaratory Relief and Quiet Title Causes of Action

The Heights's Third Cause of Action for Declaratory Relief seeks a declaration that the Fraudulent DOT is void, voidable, and/or invalid to resolve all of its controversies and seeks a cancellation of the Fraudulent DOT pursuant to Civil Code section 3412 on the basis that the instrument, if left outstanding, is likely to cause serious injury to it. (FAC, ¶¶ 45-46.)

The Height's Fourth Cause of Action for Quiet Title seeks to quiet title in and to the Subject Property against all adverse claims by Defendants. (*Id.* at ¶¶ 48-52.)

In support of its Motion, The Heights contends that the declaratory relief claim is incidental to the claim for quiet title "such that the action asserts only one claim." (The Heights's Motion for Summary Judgment ("Motion"), p. 7:19-25, quoting *Deutsche Bank Nat'l Tr. Co. v. Pyle* (2017) 13 Cal. App. 5th 513, 523 (*Deutsche*)).) California courts hold that a claim for quiet title and a claim to have an instrument in the property declared void comprise a single cause of action. (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 292-293 (*Weeden*); *Parsons v. Weis* (1904) 144 Cal. 410, 414; *Beronio v. Ventura County Lumber Co.* (1900) 129 Cal. 232, 235 [stating also "a plaintiff may frequently be entitled to several species of remedy for the enforcement of a single right"]; *Deutsche, supra*, at p. 523.)

In a nutshell, The Height's argument is that because the Fraudulent DOT is void, no property was conveyed. And because no property was conveyed, Defendants cannot claim interest in the Subject Property. Hence, The Heights is entitled to have title quieted as a matter of law now. (Motion, p. 10:1-8.)

A. The Heights's Burden on this Motion

The Heights brings its Declaratory Relief and Quiet Title claims pursuant to Civil Code section 3412. A claim for cancellation of written instrument is an equitable claim that is codified in section 3412. Section 3412 states: "A written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." (Civ. Code, § 3412.) This claim allows a plaintiff to obtain cancellation of an instrument that creates a cloud on the plaintiff's title. "Such a claim, by its definition, does not seek to hold the defendant liable for tort damages. The [plaintiff is] seeking to quiet title and also to have the instrument under which [defendants] claims an interest in the property declared void; these comprise a single cause of action." (*Weeden, supra*, 70 Cal.App.5th at pp. 292– 293.)

The Heights asserts that it is entitled to an order quieting title if the evidence establishes that its claimed interest in the Subject Property is superior to Defendants' claimed interest. (Motion, p. 7:26-28.) The Heights correctly asserts that it must proffer evidence that 1) the instrument is void or voidable, and 2) there is reasonable apprehension of serious injury. (*U.S. Bank Nat'l Ass'n v. Naifeh* (2016) 1 Cal.App.5th 767,

778 (*U.S. Bank*), citing Civ. Code § 3412 and *Turner v. Turner* (1959) 167 Cal.App.2d 636, 641 (*Turner*).)

1. Void or Voidable Deed

“A deed is void if the grantor’s signature is forged or if the grantor is unaware of the nature of what he or she is signing. A voidable deed, on the other hand, is one where the grantor is aware of what he or she is executing, but has been induced to do so through fraudulent misrepresentations.” (*Schiavon v. Arnaudo Bros.* (2000) 84 Cal.App.4th 374, 378 (*Schiavon*) [internal citations omitted].)

In support of the assertion that the Fraudulent DOT is void, The Heights asserts that Soboleva purported to sign it on behalf of The Heights despite Roberts being the only manager, officer, or authorized agent of The Heights since it was formed in 2013 and having no knowledge of Soboleva. (UMF Nos. 4, 9-11, 14 [Roberts’s Decl. ¶¶ 4, 9, Ex. 2; Avazian Decl., Ex. 9 [Fraudulent DOT]].) The Heights’s operating agreement indicates that it “has one Manager, whose name and address are as follows: Paul G. Roberts . . .” (Roberts’s Decl., Ex. 2.) The Fraudulent DOT shows that Soboleva signed the deed as “Managing Member of The Heights Residence LLC” on March 9, 2022 (Avazian Decl., Ex. 9, pp. 21-22.)

Further, the operating agreement that Soboleva presented to Aureus lists her as the “sole member” of The Heights. (Avazian Decl., Ex. 8.) Thus, The Heights proffers sufficient evidence that Soboleva forged the authority to execute the Fraudulent DOT as managing member of The Heights, despite not being the managing member. (See *Schiavon, supra*, Cal.App.4th at p. 381 [“A forgery is a “writing which falsely purports to be the writing of another,” and is executed with the intent to defraud.”].)

Accordingly, the Court finds that The Heights has established the first element of its section 3412 claim – that the Fraudulent DOT is void.

2. Reasonable Apprehension of Injury

The injury requirement for cancellation of an instrument is “a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one’s position.” (*U.S. Bank, supra*, 1 Cal.App.5th at p. 778.) The injury may be the alteration of one’s position to its prejudice. “It is not necessary to allege or prove any pecuniary loss so long as the record indicates there was injury or prejudice resulting from the fraud. It is sufficient to show that the plaintiff is in a worse position than [it] otherwise would have been.” (*Turner, supra*, 167 Cal.App.2d at p. 641.)

Here, The Heights asserts it had no knowledge of the Fraudulent DOT until it received the Notice (Roberts Decl., ¶ 8) and now it seeks to regain rightful, unencumbered title to the Subject Property (Motion, p. 6:25-28.) The false encumbering of The Height’s Subject Property with an outstanding amount owed, over \$5.2 million, that it never agreed to is sufficient to show injury. T

Accordingly, the Court finds that The Heights established the second element of its section 3412 claim.

So The Heights meets its burden as the party moving for Summary Adjudication on the Third Cause of Action and the Fourth Cause of Action.

B. US Bank's Burden in Opposing this Motion

In Opposition, US Bank does not dispute that Roberts was the sole manager of The Heights and that he has the exclusive right to control and manage the business. (Opposition, p. 11:4-15.) Further, US Bank does not dispute that the documents at issue, including the Fraudulent DOT, were physically executed by Soboleva "as the managing member of The Heights." (*Id.* at p. 11:24-25.)

Despite this, US Bank asserts that "the unanswered question, and the question for a jury to answer, is whether [Roberts], as the actual sole manager of The Heights, was aware of or somehow involved in Soboleva's signing of the documents on behalf of The Heights." (*Id.* at p. 11:25-28.) It contends that if Roberts were aware of and consented to Soboleva executing the documents, then that is no different than Roberts executing the documents himself. (*Id.* at pp. 11:28-12:2.)

In a nutshell, US Bank's argument hinges on Soboleva's use of an email address with the same domain that apparently belongs to Roberts: interfacepropertygroup.com. (Opposition, p. 12:7-12.)

To support the argument, US Bank directs the Court to Roberts's sworn deposition where he states he *had not* heard of Interface Property Group prior to the lawsuit, does not know anyone that has an email address that ends in interfacepropertygroup.com, and never gave First American Title an email address of paul@interfacepropertygroup.com. (US Bank's Statement of Evidence ("SOE"), pp. 34, 35, 43.) US Bank provides documents from First American Title that list Roberts as the buyer of the Subject Property and contain the paul@interfacepropertygroup.com email address. (See SOE, pp. 72, 73.) In reply, The Heights states that US Bank's evidence omits that First American Title "provided them with [Roberts's] real email address . . . and that First American also produced communications with Mr. Roberts using his actual email address in the 2014-2015 time period." (Reply, p. 13:24-27, citing Cestero Decl., Ex. 1.)

But even if the email address belongs to Roberts and Soboleva used the same domain name, as The Heights states in reply, this is insufficient to establish an agency relationship between Roberts and Soboleva such that Soboleva had authority to execute a deed on behalf of The Heights.

"The existence of an agency relationship and the extent of the authority of the agent are questions of fact for the jury, unless the evidence is susceptible of but one inference." (*California Viking Sprinkler Co. v. Pacific Indem. Co.* (1963) 213 Cal.App.2d 844, 850 [internal citations omitted].) "[T]he burden of proving agency, as well as scope of the agent's authority, rests upon the party asserting the existence thereof and seeking thereby

to charge the principal upon representations of the agent.” (*Ibid.*) The party must show the existence of the agency relationship and authority of the agent to bind the principal to the transaction upon which the action is brought. (*Ibid.*) “The essential elements necessary to establish an agency relationship are manifestation of consent by one person to another that the other shall act on his or her behalf and subject to his or her control, and consent by the other so to act.” (*Church Mutual Ins. Co., S.I. v. GuideOne Specialty Mutual Ins. Co.* (2021) 72 Cal.App.5th 1042, 1062 [internal quotations omitted].) Importantly, an agency, whether actual or ostensible, “cannot be created by the conduct of the agent alone; rather, conduct by the principal is essential to the create the agency. The principal must in some manner indicate that the agent is to act for the principal, and the agent must act or agree to act on the principal’s behalf and subject to the principal’s control.” (*Hearden v. Windsor Redding Care Center, LLC* (2024) 103 Cal.App.5th 1010, 1020 [internal citations and quotations omitted].)

Finally, a party “does not meet its burden of proof . . . when it does not present any evidence that the purported principal’s conduct caused the agent . . . to believe that the agent had the authority to bind the principal.” (*Ibid.*)

Here, the only related evidence proffered by US Bank is that Soboleva used the email vicotria@interfacepropertygroup.com to communicate with Aureus. Further, as The Heights notes in Reply, there is no evidence that Roberts gave Soboleva, through his own conduct, authority to bind The Heights. (Reply, p. 13:1-3.). And there is also no evidence that Roberts ever sent an email using paul@interfacepropertygroup.com to communicate with Soboleva. (*Id.* at p. 13:3-5.)

The Heights’ arguments are persuasive and right. The Court finds that there is *no evidence* that The Heights, or Roberts as the sole managing member of The Heights, caused Soboleva to believe she had the authority to sign the Fraudulent DOT as if she were the managing member of The Heights or that Roberts ratified such conduct. Hence, US Bank has failed to establish a triable issue of material fact as to the Third Cause of Action and the Fourth Cause of Action. And as US Bank has failed to establish a triable issue of material fact, The Heights is entitled to Summary Adjudication in its favor on the Third Cause of Action and the Fourth Cause of Action.

Accordingly, the Motion for Summary Adjudication is **GRANTED**.¹

¹ As for The Heights’ request for sanctions against U.S. Bank under C.C.P. § 437c(j) made for the first time in its Reply brief for, among other things, “its attorney’s fees of \$16,227.50, incurred in connection with responding to U.S. Bank’s bad faith affidavit,” Reply at 14 n.2, this request for sanctions is **DENIED** in all respects. First, the plain text of Section 437c(j) states that “[s]anctions *shall not* be imposed pursuant to this subdivision except on notice”—and there is no noticed motion here for sanctions. C.C.P. § 437c(j) (emphasis added). Second, appellate precedent holds that attorneys’ fees are not recoverable under Section 437c(j). *Collins v. Dept. of Transportation*, (2003) 114 Cal. App. 4th 859, 869-870. This Court is not free to ignore that appellate precedent just because The Heights thinks *Collins* was “wrongly decided.” Reply at 14 n.2. The Heights

Conclusion and Order

The Heights' Motion for Summary Adjudication is **GRANTED** as follows:

1. The Court **GRANTS** Summary Adjudication on The Heights's Third Cause of Action for Declaratory Relief in favor of The Heights and against Defendants Victoria Soboleva, Aureus Finance Group, LLC, U.S. Bank Trust National Association, and FCI Lender Services, Inc. because there is no triable issue of material fact and The Heights is entitled to Summary Adjudication on the Third Cause of Action as a matter of law.
2. The Court **GRANTS** Summary Adjudication on The Heights's Fourth Cause of Action for Quiet Title in favor of The Heights and against Defendants Victoria Soboleva, Aureus Finance Group, LLC, U.S. Bank Trust National Association, and FCI Lender Services, Inc. because there is no triable issue of material fact and The Heights is entitled to Summary Adjudication on the Fourth Cause of Action as a matter of law.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

can go petition the Legislature to change *Collins*. Third, The Heights has not convinced the Court that the filing of the U.S. Bank's affidavit itself caused The Heights to incur any *reasonable* expenses. Do not overreach.

Line 4

Case Name: *Bathena Dixon v. General Motors, LLC, et al.*

Case No.: 23CV426612

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM”) moves under Code of Civil Procedure Section 437c for Summary Judgment or, in the alternative, for Summary Adjudication in its favor on each of the six Causes of Action in Plaintiff’s First Amended Complaint. Notice of Motion (the “Motion”) at 2:4-20 (filed: Dec. 10, 2025). The Motion is made on the grounds that:

1. On the First, Second, and Third Causes of Action for Violation of Subdivisions (D) & (B) & (A)(3) of Civil Code Section 1793.2, respectively, Plaintiff cannot pursue breach of express warranty claims under Song-Beverly against GM concerning a vehicle that Plaintiff did not purchase as “a new motor vehicle”;
2. On the Fourth Cause of Action for Breach of the Implied Warranty of Merchantability, Plaintiff cannot pursue breach of implied warranty claims against GM based on a vehicle she bought “used”;
3. On the Sixth Cause of Action for Fraudulent Inducement-Concealment, because the information that GM alleged failed to disclose was publicly available; and
4. On the Fifth Cause of Action for Violation of the Magnuson-Moss Warranty Act, because Plaintiff’s Magnuson-Moss warranty claim fails alongside her Song-Beverly state law claims.

Id. at 2:4-20.

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Bathena Dixon (“Plaintiff”) brings this action against Defendants General Motors Inc. and Does 1 through 10, inclusive, for claims related to Plaintiff’s purchase of a 2019 Chevrolet Volt. (Complaint, ¶ 6.) Plaintiff alleges that on or about April 8, 2023, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 Chevrolet Volt, which was manufactured and or distributed by Defendant GM. (*Ibid.*)